

25STCV33488 25STCV33488

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-07-13

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Case Number: 25STCV33488 Hearing Date: July 13, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

TRACY JERNIGAN, et al.,

Plaintiffs,

vs.

ANGELUS FUNERAL HOME,

Defendant.

Case No.:

25STCV33488

Hearing Date:

July 13, 2026

Hearing

Time: 2:00 p.m.

[TENTATIVE]

ORDER RE:

DEFENDANT ANGELUS

FUNERAL HOMES' DEMURRER TO PLAINTIFFS' COMPLAINT;

DEFENDANT ANGELUS

FUNERAL HOMES' MOTION TO STRIKE PLAINTIFFS' COMPLAINT

Background

On November 17, 2025, Plaintiffs Tracy Jernigan, T'ron Walker, Terrin Walker, Phillip Taylor, Lashay Rasmus, Lawanda Reece, Shaquita Turner, Stacie Jones, Alexis Green, Teresa Walker, Betty Walker, and Cleo Walker (collectively, "Plaintiffs") filed this action against Defendant Angelus Funeral Home ("Angelus"), alleging three causes of action for (1) negligence, (2) breach of contract, (3) intentional infliction of emotional distress, and (4) negligent infliction of emotional distress.

Angelus now demurs to the complaint and moves to strike portions of the complaint. Plaintiffs oppose. Angelus replied.

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Discussion

As an initial matter, Angelus' counsel's declaration in support of the demurrer and motion to strike indicates, inter alia, that "[o]n or about February 2, 2025, I had my Assistant send a letter to Plaintiffs' counsel by email, requesting to speak with them regarding Defendant's concerns about Plaintiffs' Complaint." (Kahn Decl., ¶ 2; Ex. B.) Angelus' counsel next attests that "[o]n or about February 4, 2026, Plaintiffs' counsel responded to my letter by email, stating there was no need for a conversation as Plaintiffs believed their Complaint was sufficiently pled." (Kahn Decl., ¶ 3; Ex. C.)

The Court notes that Angelus' counsel's declaration does not demonstrate that the parties met and conferred by telephone or in person, or that Angelus' counsel attempted to do so.

Pursuant to Code of Civil Procedure section 430.41, subdivision (a), "[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (Emphasis added.) In addition, "[b]efore filing a motion to strike pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike." (Code Civ. Proc., § 435.5, subd. (a) [emphasis added].) Such meeting and conferring must be done in good faith with an effort to try to resolve the issues subject to the demurrer.

In light of the foregoing, the hearing on Angelus' demurrer and motion to strike is continued to _____, 2026 at 2:00 p.m. in Dept. 508.

Angelus is ordered to meet and confer with Plaintiffs within 10 days of the date of this order. If the parties are unable to resolve the pleading issues or if the parties are otherwise unable to meet and confer in good faith, Angelus is to thereafter file and serve a declaration setting forth the efforts to meet and confer in compliance with Code of Civil Procedure section 430.41, subdivision (a)(3) and Code of Civil Procedure section 435.5, subdivision (a)(3) within 15 days of this Order.

ADDITIONALLY,
THE COURT NOTES THAT IT DID NOT RECEIVE COURTESY COPIES OF THE MOTION TO STRIKE, THE OPPOSITION THERETO OR ANY REPLY.

Angelus is ordered to give notice of this Order.

DATED: July
13, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court